

Smt Dr P V Lakshmi Devi vs Sri Srihari S/O T. Ananthramaiah on 21 June, 2010

Bench: D.V. Shylendra Kumar, N. Ananda

IN THE HIGH COURT OF KARNATAKA
AT BANGALORE

Dated this the 21st day of June, 2010

PRESENT

THE HON'BLE MR JUSTICE D V A A E'

AND V __ A
THE HON'BLE MR JUSTICE C. J. N. ANANTHARAMAIAH

Miscellaneous First Appeal. No. 26509 of 2009

Between: '

SMT DR. P V LAKSHMI DEVI

w/o SRI SRIHARI H
AGED ABOUT 40 YEARS
NO. 42, MSR COLONY
GOKULA
BANGALORE - 560054. APPELLANT

A. {By Sri: f. é s < a _ § i ' - m g d e . Adv. }

AND

S. / O Smt T. ANANTHARAMAIAH
AGED ABOUT 42 YEARS
RESIDING AT I. N. Q. 8 - 1 j ~ 2 N. D MAIN
SBM LAYOUT

q. * ANANDNAGAR, . ' f
BANGALORE - 560024. RESPONDENT

"il é y Srm Shobha Bhavikatti. Adv. for
M/ S. Legal Solutions. Adv. }

' E ' i § E { IS APPEAL IS FILED UNDER SECTION 28(1) OF THE

A. H. 1ND3 . , T. SMARRIAGE ACT AGAINST THE JUDGEMENT AND DEGREE
m: V23.7.2009 PASSED EN MC. NO. 2229/2004 ON THE FILE OF

2

THE III ADDL. PRL. JUDGE, FAMILY COURT, BANGALORE.
ALLOWING THE PETITION FILED U/S. 13(1)(a) OF THE HINDU
MARRIAGE ACT FOR DISSOLUTION OF MARRIAGE AND E.I.C.,

THIS APPEAL IS COMING ON FOR ORDERS THIS

ANANDA J. DELIVERED THE FOLLOWING:

JUDGMENT

Our efforts to reconcile the parties have I have heard the learned counsel for the '1 h' been taken through the records. V, The learned of the trial court at the instance of the respondent--husband granted a decree of divorce; 'M'. holding ' ~ «that'«. the appellant wife was guilty of cruelty. I

2. It is seen that the marriage between the parties was solemnized on 2-12-2004 and the wife in the... house of the husband on 3-12-2004. 2. According to evidence of the husband, on his wife and left her in her parents' house. Petition was filed on 29-12-2004 along with four

-- IA--I for permission to engage a counsel; IA» ' In view of the matter before the vacation Bench; IAII for 'permission to file the petition within one year from the date of marriage; and IA--IV for an order of temporary injunction to restrain the respondent--wife from disturbing the peaceful existence of the petitioner--husband.

3. The learned Judge of the Family Court appreciated the oral evidence of the wife, that the wife was guilty of cruelty and dissolved marriage by a decree of divorce.

4. In the first instance? we the learned judge had not permitted the petition within one year from the date of marriage, on perusal of order sheet returned by the court, we do not find any order. passed on the application / IA--I. On perusal of the husband's evidence, we find that the husband has made frivolous allegations that the marriage was not consummated due to the irresponsible behaviour of the members of the wife and not due to impotency of the wife, as provided under Section 12 of the Hindu Marriage Act, 1955 [for short, the Act]. He ' to accept the contention of the husband that his wife was guilty of cruelty to enable him to have a decree of divorce on that ground is far fetched, more particularly, in view of the vague and irresponsible allegations made in the petition. We notice from the petition that none of the petitioners do not bring the case within the provisions of Section 13 of the Act.

7. We also notice from the judgment that the learned judge of the court found fault with the wife for not enabling the husband by filing a petition for restoration of conjugal rights, which equally applies to the husband; also find from the record that the husband had not made out any circumstances enabling him to present an application under Section 14 of the Act.

Voydejrconie the bar imposed in this section for a petition for divorce within one year from the date
'_'of_ rriarriage. TV? . -- 9* 'W-'*""L*-My-'

8. Therefore we cannot sustain the impugned judgment and accordingly we accept this appeal and
aside the impugned judgment and decree by exemplary cost of Rs 10,000/--
{Rupees-¢e»n,.pthifimeéíhd 'V only} payable by the respondent--hue'bai.š'tiA' :5" .Tti*1:E
appellant~wi'fe.

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